

STATE OF NEW YORK

8840--A

2025-2026 Regular Sessions

IN ASSEMBLY

June 9, 2025

Introduced by M. of A. HOOKS, PAULIN, KELLES, TAPIA, BURROUGHS, RAGA, MEEKS -- read once and referred to the Committee on Correction -- recommitted to the Committee on Correction in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the correction law, in relation to visitors to correctional facilities who are menstruating, wearing menstrual products or have a contraceptive device

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The correction law is amended by adding a new section 138-c
2 to read as follows:

3 § 138-c. Visitors to correctional facilities; menstrual products and
4 contraceptive devices. No state or local correctional facility shall
5 deny entry or contact-visits to a person visiting an incarcerated indi-
6 vidual at such facility due to the fact that such person is menstruating
7 or has a contraceptive device, or it appears on body scan imaging or
8 alternative screening methods that such person has or is using a
9 menstrual product or contraceptive device, including but not limited to
10 menstrual pads, tampons, menstrual cups, menstrual discs, intrauterine
11 devices, contraceptive implants, and vaginal rings. Such products shall
12 not be required to be removed for entry or contact-visits.

13 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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